trade marks



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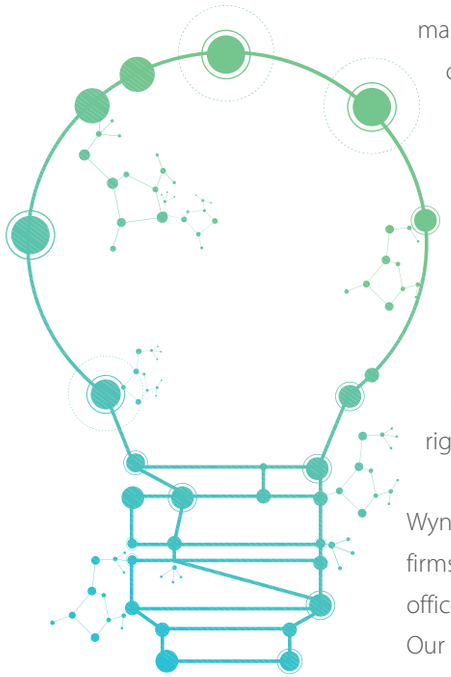


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To ensure that your IP assets are fully protected and exploited, you need the right partner.

WYNNE-JONES IP
own thinking

Your IP is too important not to be done properly



Intellectual Property (IP) rights, such as patents, trade marks, designs and copyright are assets, which can be licensed and sold. Additionally, strong IP rights can be used to stop others from using your IP, thereby protecting your market position. IP rights may also be used to leverage grants and financial assistance. Quite simply, the value of a business can be transformed by obtaining the right IP assets. To ensure that your IP assets are fully protected and exploited, you need the right partner.

Wynne-Jones IP is one of the longest standing firms of patent and trade mark attorneys, with offices in London, Cardiff, Cheltenham and Telford. Our attorneys have a wealth of experience across a spectrum of technical and business sectors, which means that we can match you with an attorney who specialises in IP that is relevant to your field.

IP services tailored to address issues facing start-up businesses

It's not an overstatement to say that getting the right IP advice in the early days of a business venture can mean the difference between success and failure. If your core idea or product is not properly protected then it's unlikely that you'll be able to stop another company copying it. You could lose your market position, regardless of whether you were the first to create or commercialise.

Similar problems can arise with company or product names. Having a company name registered at Companies House and/or as a domain name won't necessarily enable you to stop a competitor from using the same, or very similar, brand name and take advantage of the reputation you're building up.

There's also the question of whether you infringe another company's IP rights. Even if you came up with your idea, product or brand name completely independently, this doesn't mean you can avoid being sued for infringement of many types of IP rights if you fall within their scope.

Our IP solutions

Wynne-Jones IP offer free, structured consultations for start-up ventures. Whether you're already up and running, or still at the drawing board stage, we will give full consideration to the forms of IP protection that are right for you and how you can use them to maximise your chances of commercial success.

Topics covered can include how to protect your (current and future) concepts, products and brand names; investigating potential infringement risks, and licensing and other commercial negotiations involving IP.

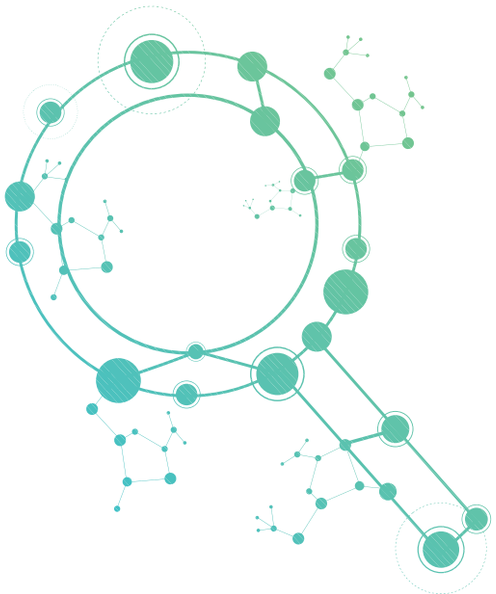
We also discount some of our service charges for start-ups and have developed close links with a number of organizations, notably the Welsh Government, which can assist start-ups and new businesses with finance. We're also one of the few firms of IP attorneys who have opted into the UK IP Office funded scheme to provide free IP audits and related advice for businesses and start-ups.

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What is a trade mark?

A trade mark is simply the legally protectable part of a brand. The legal system tries to keep up with modern perceptions of brand, and so as well as names and logos, it is possible to protect 3D shapes, sounds, smells, colour combinations, slogans – even the layout of a shop.

I have my company name and domain name registered– are these enough?



Company names, domain names and trade marks are all separate and perform different functions. A trade mark is the strongest of name rights as registration provides an exclusive monopoly right that you can use to prevent the use of the same or a confusingly similar name, whether as a brand, company name or domain name. Trade marks truly are the king of name rights. Company names and domain names provide no real rights to stop others from using a name.

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Do I have to own a trade mark registration for my brand?

Registration of a trade mark is not compulsory to use your brand in the marketplace, but it is strongly advisable. What would you do if a competitor copied your brand and as a result took business from you? What would you do if your brand and products were targeted by counterfeiters? A registration provides a deterrent, as the details of your ownership appear on a public searchable record. Should there be an issue in the future a registration provides you with a strong right upon which to base any legal action.

If I register my trade mark in the UK do I get any protection overseas?

Trade mark rights are territorial in nature, so if you register your trade mark in the UK this only gives you these exclusive rights in the UK. If you wish to protect your trade mark in other countries you need to seek separate protection. Fortunately, if it is the EU that you are interested in there is a single system for obtaining protection to cover the whole of the EU, which makes the process simpler and more cost efficient.

Do rights last forever?

A trade mark registration has the potential to last forever. In the UK trade mark number 1, obtained on 1 January 1876, is still in force. However it is necessary to pay renewal fees every 10 years, and if you don't use your trade mark for a period of 5 years or more, it is possible for someone to cancel your registration. After all, why should you have an exclusive monopoly and not take advantage of it?

Can I register anything I want?

Needless to say there are restrictions as it would not be just for someone to obtain an exclusive monopoly unfairly. For this reason, if your trade mark is descriptive of your product or service, or is a generic term, you cannot simply register it. Similarly, if your trade mark is potentially deceptive, it cannot be registered.

If I want to launch a new brand, should I look before I leap?

The simple answer to this is yes. Research your brand. Use your industry knowledge. Have register searches undertaken. If you do this early enough in the brand development process, you have sufficient time to change your plans without incurring too much cost, and you could save yourself the embarrassment, and cost, of having to withdraw a product following launch.

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